relation to VCs. It declared the circular as illegal and unenforceable on the ground of proportionality. It said that the RBI itself had not found that the banks and financial institutions have suffered any loss or adversely effected on account of VC exchanges. Further, it also ruled that the circular violates the freedom to carry on trade under Article 19(1)(g). Hence, it declared the circular as unconstitutional.

Impact of the Judgement: This judgement removed the ban on crypto currency trading in India. This made the banks and financial institutions to rejoin the virtual currency industry and do the trading. Further, this judgement also brought into focus the need for creating a legal framework for regulating the crypto currency trading and the various issues associated with this industry in India.

[1]*A.D.M. Jabalpur* vs. *Shivakant Shukla* (1976). This case is popularly known as the Habeas Corpus case.

[2]*Maneka Gandhi* vs. *Union of India* (1978). This case is popularly known as the Personal Liberty case.

[3]*Sajjan Singh* vs. *State of Rajasthan* (1964).

[4]*I.C. Golak Nath* vs. *State of Punjab* (1967).

[5]Reference by the President of India under Article 143 of the constitution on the implementation of the Indo-Pak Agreement of 1958, relating to Berubari Union and Exchange of Cooch-Behar Enclaves (1960).

[6]*Shankari Prasad* vs. *Union of India* (1951).

[7]*Sajjan Singh* vs. *State of Rajasthan* (1964).

[8]*I.C. Golak Nath* vs. *State of Punjab* (1967).

[9]The second part stood as follows: “No law containing a declaration that it is for giving effect to such policy shall be called in question

CHAPTER 92 Judgements Expanding the Scope of Article 21

Table 92.1: Judgements declaring various rights as integral parts of the protection of life and personal liberty under Article 21

Sl. No.	Name of the Case	Year of Judgement	Right declared by the Supreme Court as an integral part of Article 21
1.	Satwant Singh Sawhney vs. D. Ramarathnam, Assistant Passport Officer, New Delhi	1967	Right to travel abroad
2.	Sunil Batra vs. Delhi Administration	1978	Right against solitary confinement